

An Act

ENROLLED HOUSE
BILL NO. 4408

By: Blancett, Waldron, and
Dollens of the House

and

Rader and Mann of the
Senate

An Act relating to State Question 780 data; amending 57 O.S. 2021, Section 632, as amended by Section 2, Chapter 201, O.S.L. 2023, and as renumbered by Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-312.2), which relates to savings and averted costs of the Oklahoma Smart Justice Reform Act; requiring the Department of Corrections to provide certain data to the Legislative Office of Fiscal Transparency; requiring the Administrator of the Courts to provide certain data to the Legislative Office of Fiscal Transparency; clarifying the type of crimes to be included in the data; requiring calculation of data within certain time frame; and providing an effective date.

SUBJECT: State Question 780 data

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 632, as amended by Section 2, Chapter 201, O.S.L. 2023, and as renumbered by Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-312.2), is amended to read as follows:

Section 2-312.2. No later than July 31 of each year, the Department of Corrections shall provide the Legislative Office of Fiscal Transparency with data for the prior fiscal year ending June 30, reflecting the number of unique offenders and days served by each offender, upon completion of the corresponding sentence, for those convicted only of crimes modified by State Question 780. No

later than July 31 of each year, the Administrator of the Courts shall provide the Legislative Office of Fiscal Transparency with data necessary to calculate the annual savings and averted costs, including the number of persons convicted only of crimes modified by State Question 780 and the number of days sentenced for such crimes. For purposes of this section, crimes modified by State Question 780 shall include only those crimes that were previously felonies that are now misdemeanors and crimes that fall between the former dollar threshold and current dollar threshold for crimes whose severity is determined by a dollar threshold. No later than thirty (30) days after being provided with the data from both the Department of Corrections and the Administrator of the Courts, the Legislative Office of Fiscal Transparency shall calculate the annual savings and averted costs from the prior fiscal year that accrued to the state due to the reduction of the number and length of incarcerations attributed to the implementation of the Oklahoma Smart Justice Reform Act. In making the calculation required by this section, the Legislative Office of Fiscal Transparency shall use actual data or best available estimates where actual data is not available. The calculation shall be final and shall not be adjusted for any subsequent changes in the underlying data.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 4th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____